What is personal injury?

Personal injury law (also known as "tort" law) lets an injured person get compensation when someone else's wrongful conduct (negligence or an intentional act) causes harm. There are a variety of situations that can give rise to a valid personal injury claim, but remember that an injury doesn't automatically result in legal liability. Let's look at some of the most common kinds of personal injury cases.

Car Accident Cases

Car accidents spur the most personal injury cases in the United States. When an accident happens, usually it's because someone isn't following the rules of the road, or isn't driving as carefully as he or she should be. A careless driver can (usually) be held financially and responsible for injuries stemming from a car accident. Exceptions do exist in the dozen or so "no fault" states, where drivers have to collect from their own insurers except in cases of "serious" injury. Learn more about car accident injury cases.

Slip and Fall Cases

Slip and fall claims are another common type of personal injury case. Property owners (or, in some cases, those who are renting property) have a legal duty to keep their premises reasonably safe and free of hazards, so that people who are on the property do not become injured. Of course, not all injuries that occur on the property will lead to liability. The exact nature of a landowner's legal duty varies depending on the situation and according to the law in place in the state where the injury occurred.

Medical Malpractice

A medical malpractice claim can arise when a doctor or other health care professional provides treatment that falls below the appropriate medical standard of care, and a patient is injured as a result. But it's important to keep in mind that getting a bad result in the treatment setting doesn't mean malpractice occurred.

Learn more about when it's medical malpractice (and when it isn't) and why medical malpractice cases are tough to win.

Defamation: Libel and Slander

Defamation in the form of libel or slander refers to an injury to a person's reputation as a result of untrue statements. The exact nature of what a defamation plaintiff must prove will vary depending on who the plaintiff is, and the forum where the statement was made. The average person usually just needs to prove that an untrue negative statement was made and that actual harm (financial loss) came from it. Celebrities or public figures, on the other hand, usually need to prove "actual malice." This means they need to prove that the untrue statement was made either intentionally or with reckless disregard to the truth of the statement. Learn more about the legal elements of libel and slander.

Dog Bites

In most cases, the owners of a dog are financially responsible for bites and other injuries caused by the dog. The exact laws on owner responsibility vary from state to state, though. In some cases, strict liability rules exist and the dog owner is going to be liable for dog bite damages even if the dog has never shown any aggression or propensity to bite in the past. In other states, "one bite" rules exist, in which owners only become responsible for personal injury damages once there is a reason for those owners to know their dog is aggressive or prone to biting (like a previous history of bites.) Learn more about "one bite" versus "strict" liability in dog bite cases.

Assault, Battery and Other Intentional Torts

Unlike most other types of personal injury claims, intentional torts are not based on accidents caused by negligence or carelessness, but rather when one person harms or injures another on purpose. These cases can involve the added aspect of a criminal case against the perpetrator. For example, when one person physically attacks another, he or she may face criminal charges. Additionally, the victim can file a personal injury lawsuit in civil court and demand compensation for injuries resulting from the attack. Learn more about intentional torts.

Personal Injury Case Timeline

If you've been injured in any kind of accident that looks like it was someone else's fault, you might be wondering what to expect in a typical personal injury case, including how long it takes. This article will walk you through the standard timeline of a personal injury claim. (Important note: As you read, keep in mind that most personal injury cases settle, often without a lawsuit being filed in court. So your case probably won't reach every stage discussed here; it could settle at any point on the timeline.)

Step 1 - Get Medical Treatment

The first thing that you should do after getting injured in an accident is get medical treatment. That means, if you have even the slightest sense that you are hurt, go to the emergency room or make an appointment to see your doctor. Not only is this the right thing to do for your health, but, if you don’t see a doctor for some time after an accident, the insurance adjuster and the jury will probably assume that your injuries aren't that serious.

Step 2 - Consult a Personal Injury Lawyer

For anything more than a very minor claim, it's usually a good idea to at least discuss your situation with a personal injury lawyer. You can handle a small personal injury claim yourself (as long as you're comfortable with the process and confident you can get a fair result), but you will absolutely need a lawyer for any personal injury claim where you suffered significant injury, or the other side is putting up a fight on key issues. In general, if you are out of work for more than a couple of days, if you break a bone, or if your medical bills total more than a couple of thousand dollars, you should talk to a lawyer, and you might want to meet several of them. Get details on what to ask before hiring a personal injury lawyer.

Step 3 - Lawyer Investigates Claim and Reviews Medical Records

One of the first things your lawyer will do is interview you. The lawyer wants to know everything you know about the accident, your injuries, and your medical

treatment. Lawyers don’t want to be surprised, so make sure to answer all questions as completely as you can.

Next, the lawyer will get all of your medical records and bills relating to the injury and will probably also get your medical records for any treatment you have ever had relating to the condition at issue in the case. This can take months.

Step 4 - Lawyer Considers Making Demand and Negotiating

Many smaller personal injury claims are settled before a lawsuit is ever filed. If the lawyer thinks that the case can be settled, they will make a demand to the other attorney or the other side's insurance company. Learn more about how the settlement negotiation process works in a personal injury case.

A good lawyer will not make a demand until the plaintiff has reached a point of maximum medical improvement (MMI). MMI is when the plaintiff has ended all medical treatment and is as recovered as possible. This is because, until the plaintiff has reached MMI, the lawyer does not know how much the case is worth.

The lawyer should also not file a lawsuit until MMI. This is because, if the plaintiff is not at MMI by the time that the case goes to trial, the jury might undervalue the case.

If settlement talks stall or the two sides are two far apart, the case moves into the "litigation" phase.

Step 5 - The Personal Injury Lawsuit is Filed

The litigation phase starts when you and your lawyer file a personal injury lawsuit in court. The filing of the lawsuit starts the clock running on when the case might get to trial. Every state’s pretrial procedures are different, but generally it will take one to two years for a personal injury case to get to trial. Keep in mind that a lawsuit needs to be filed within strict time limits that every state has set in a law called a statute of limitations.

Step 6 - The Discovery Phase of a Personal Injury Case

The discovery phase is when each party investigates what the other side's legal claims and defenses are. They send interrogatories (a fancy word for questions) and document requests to each other, and take depositions of all relevant parties and witnesses, generally beginning with the plaintiff and defendant. This process can last six months to a year, depending on the court's deadlines and the complexity of the case.

Step 7 - Mediation and Negotiation

As the discovery period ends, the lawyers will generally start talking settlement. Sometimes the lawyers can settle just by talking among themselves, but, in other cases, they will go to mediation, a process in which both clients and both lawyers get help from a neutral third party mediator to try to resolve the case. (Learn more about mediation of personal injury claims.)

Step 8 - Trial

Mediation often works, but if it doesn't, the case is scheduled for trial. A personal injury trial can last a day, a week, or even longer. The length may be increased because, in many states, trials are held for only half a day instead of over a full day. That doubles the length of a trial, but also lets the lawyers and judges get other things done in the afternoon.

One important thing to know about trials is that just because a lawsuit is scheduled for trial does not mean the trial will actually occur on that date. Trials often get pushed because of the judge's schedule. If your trial gets moved, you should not automatically assume that something unfavorable is happening. Trials are delayed all the time, and for the most innocuous of reasons. For details on this stage of the process in the context of one of the most common types of injury cases, learn what happens when a car accident case goes to trial.

How Much Can I Get for My Personal Injury Case and How Long Will It Take?

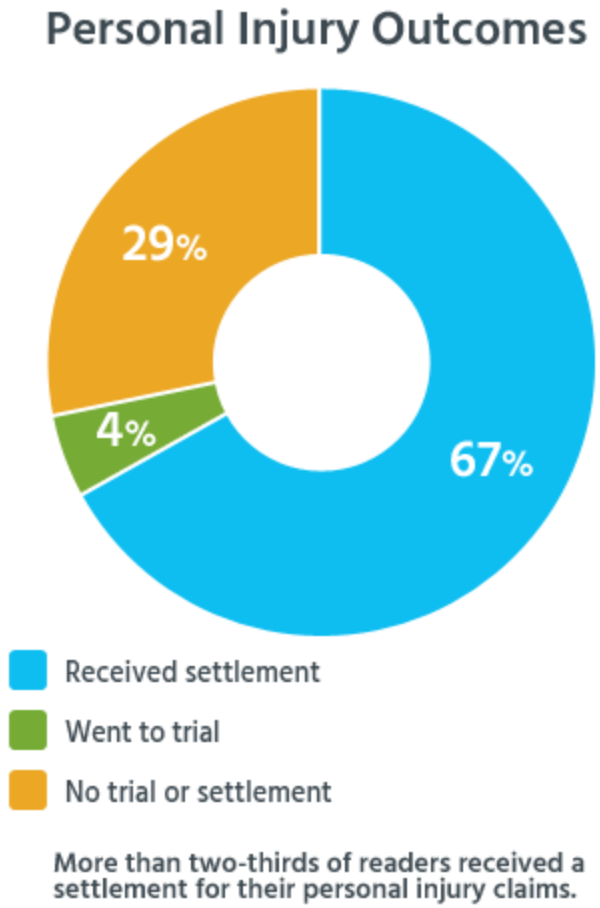
You may be thinking of filing a personal injury claim after being hurt in a car accident, a slip-and-fall, or another incident caused by someone else's

carelessness. If so, you probably have lots of questions: What are my chances of getting fair compensation for my medical bills and other losses? Is it better to hire a lawyer, or can I handle it on my own? Is there anything I can do to increase my chances of success? How long will the process take?

To help get answers to these and other pressing questions, we surveyed our readers across the United States and asked about their recent experiences with personal injury claims. Here's what we learned.

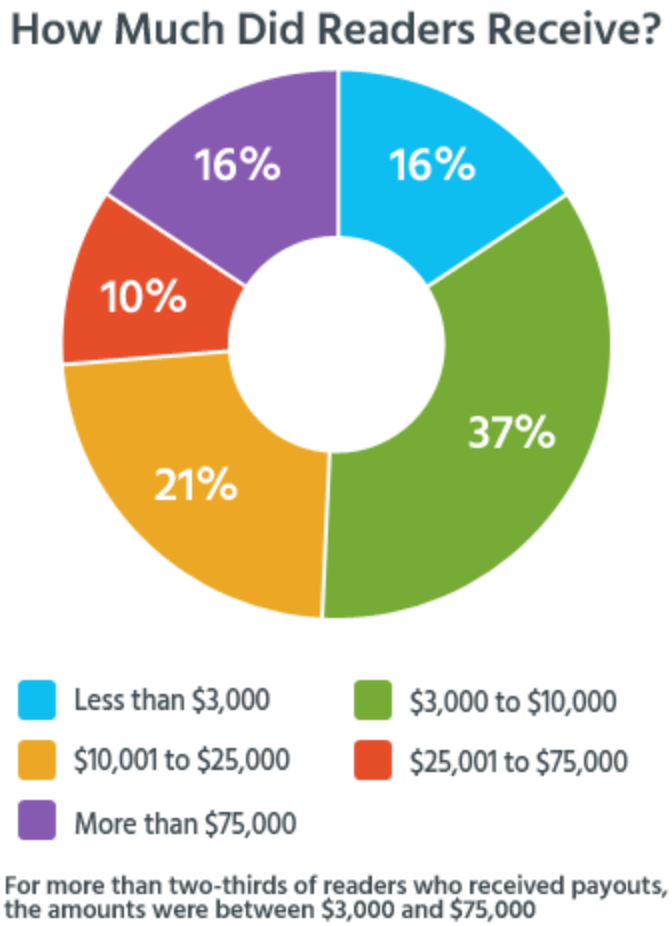
Settlements: The Most Common Outcome in Personal Injury Claims

Overall, 70% of our readers with a personal injury claim received a payout (an out-of-court settlement or an award after a trial). And for nearly that many (67%), the compensation came in the form of a settlement. Very few readers (4%) saw their case go to trial, which is typical in personal injury cases. Trials can be time consuming, expensive, and risky for everyone involved. That's why insurance adjusters—as well as the lawyers helping injured people—are usually motivated to reach a personal injury settlement.



How Much Compensation Is Typical in Personal Injury Cases?

More than half of our readers received payouts ranging from just $3,000 to $25,000. But another 26% of readers received over $25,000, making the overall average $52,900. When you're looking at these results, keep in mind that the readers we surveyed had come to our websites to find information about a claim and to look for a lawyer. It may be that those with the most severe injuries (which lead to a higher settlement or award) immediately retained a lawyer and therefore did not participate in our survey.



What Affects the Outcome in Personal Injury Claims?

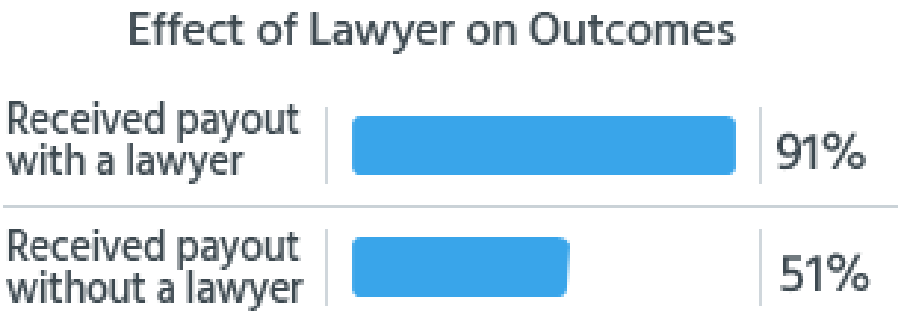
There tend to be general patterns as to how insurance companies value an injury case. You don't have control over some factors that affect those patterns, including:

- Your injuries. Serious injuries result in more medical expenses and significant "pain and suffering" damages—which generally lead to higher payouts.
- The defendant's insurance policy. Obviously, the insurance company won't offer settlements over the policy limits.

However, our survey results point to several things you can do that significantly affect the likelihood of a successful outcome as well as the amount of compensation you might receive: hiring a lawyer, negotiating settlement (rather than simply taking the first offer), and taking steps to involve the court.

The Advantage of Legal Representation

Our survey showed that hiring a personal injury lawyer is the most important step you can take to increase your chances of getting compensation for your harm. More than nine out of ten readers who had legal representation received a settlement or award, compared to about half of those who proceeded on their own.

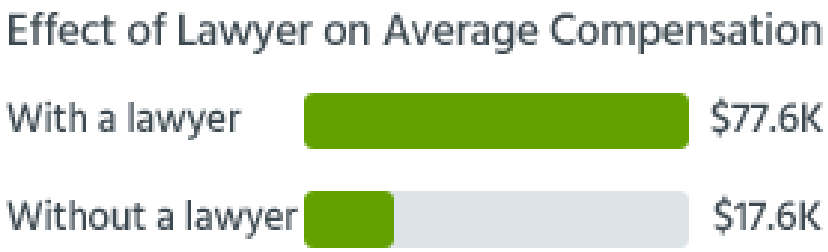


Legal representation also made a big difference in the amount of personal injury payouts. Readers who hired a lawyer walked away with an average of $77,600 in compensation, compared to an average of $17,600 for those who handled their own injury claims.

When we combine the survey results on compensation and attorneys' fees, it's clear that readers who hired lawyers still came out far ahead.

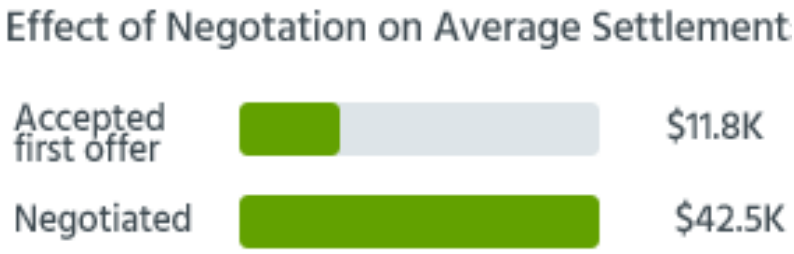
After deducting the average 32% contingency fee reported by our readers, they ended up with net payouts that were nearly three times higher, on average, than what unrepresented readers received. These results aren't surprising. Lawyers know what it takes to build a solid personal injury claim, gather evidence, and

deal with insurance adjusters. Learn more about when you need a personal injury lawyer and how to find the best personal injury lawyer for you and your case.



Negotiating Settlement Offers

It may seem obvious that you'll end up with a higher settlement by negotiating rather than simply accepting the first offer from the other side. This may not be true in every case, but it's still one of the most effective strategies for getting more money. Most of our readers (70%) held out for a better deal. As a result, they received settlements that were $30,700 higher, on average, compared to those who accepted the insurance company's first offer. Get tips on negotiating a fair personal injury settlement.

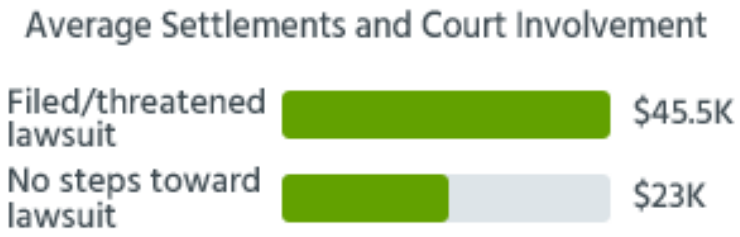


Filing or Threatening a Personal Injury Lawsuit

Just over half of our readers settled or otherwise resolved their personal injury claims without filing a personal injury lawsuit or even notifying the other side that they were ready to do that. But readers who did take one of those steps were more likely to receive a settlement or award, and their payouts were almost twice

as high as those who didn't file or threaten lawsuits ($45,500 compared to $23,000).

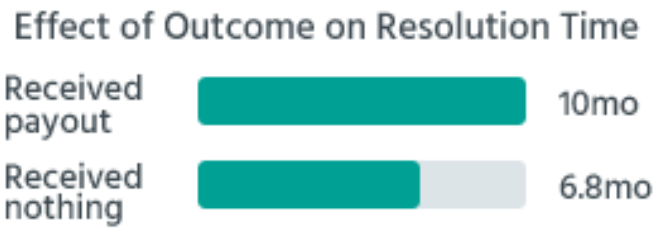
Even though most personal injury cases settle, and trials are rare, insurance companies are clearly more inclined to make a reasonable settlement offer if you show them that you're serious by moving ahead toward a lawsuit.



How Long Does It Take to Resolve Personal Injury Claims?

Half of our readers resolved their personal injury claims within two months to a year, while 30% of readers waited over a year for their cases to be resolved. The overall average was 11.4 months. It's natural to want a quick payout, but a faster resolution doesn't necessarily mean a better result.

For one thing, it took longer to resolve claims that had a successful outcome—a settlement or court award—than those that didn't. Also, many of the factors that increased the likelihood of successful outcomes and higher payouts also increased the average time needed to resolve claims, including hiring an attorney, filing or threatening a lawsuit, and negotiating with the insurance company.



When a Car Accident Case Goes to Trial

The vast majority of all car accident insurance claims are resolved before any lawsuit is filed. And of the car accident lawsuits that do get filed, most of those cases are resolved by settlement agreement before a trial takes place.

But it's also true that not all car accident cases can be settled. Perhaps the parties can’t agree on who caused the accident. Perhaps the parties can agree that the plaintiff was injured, but they can’t come to an agreement on the amount of compensation that should be paid for those injuries.

If your car accident case cannot be resolved by a settlement, then you may be wondering what happens if your case goes to trial. The rules governing trials vary from state to state, but there are some concepts and procedures for trials that are common to most states, and we'll look at those in the sections that follow.

Jury Selection in a Car Accident Trial

In most states, a jury (as opposed to a judge) decides the key issues in a car accident case. The jury is typically comprised of twelve persons, but sometimes that number can be lower.

The first stage of the trial is called voir dire, and it is during this stage that the jury members are selected. In this phase potential jurors are asked a series of questions so that the lawyers and the judge can learn more about them. The purpose of the questions is to determine if the person has any biases or prejudices that might keep them from being fair and impartial.

Opening Statements

Once the jury is selected, the parties then make opening statements. The plaintiff’s attorney usually goes first, because the plaintiff has the burden of

proving all of the allegations in the case. The opening statement is the opportunity for each party's attorney to set the stage for the jury and lay out their side of the case -- what they will prove or refute. In most states, opening statements usually last about fifteen to twenty minutes.

The Plaintiff's Presentation of Evidence

Following the opening statements, the plaintiff's attorney presents the plaintiff's case. Again, the plaintiff's side goes first in presenting the evidence because the plaintiff has the "burden of proof." The attorney presents evidence on the issues by calling witnesses.

For example, to establish how the car accident occurred, the plaintiff's attorney would probably call the plaintiff to testify about his or her observations just before and during the crash, and at the scene shortly afterward. The attorney may also call any bystanders or other car accident witnesses.

A similar pattern is followed in presenting evidence on other issues in the case, though the particular witnesses might not be the same.

For example, to show the jury evidence of the plaintiff's injuries in the car accident, the plaintiff's attorney might ask questions directly to the plaintiff regarding the injuries suffered. Following that, the plaintiff's attorney might call as a witness the plaintiff's doctor. Questions posed to the doctor might address issues concerning the medical treatment that was required following the car accident, and the plaintiff's prognosis for a full recovery.

The Defendant's Presentation of Evidence

Once the plaintiff's attorney has presented to the jury all of the witnesses the attorney believes necessary to prove the plaintiff's side of the case, the plaintiff then "rests" the case. Doing so signifies to the judge that it is the defendant's turn to present evidence.

The defendant’s presentation of evidence follows the same format as that for the plaintiff. The defendant’s attorney calls witnesses to testify to the jury on the issues raised by the case. Just as in the plaintiff’s case, the testimony of those witnesses called by the defendant’s attorney typically supports the claims and defenses of the side calling the witnesses.

For example, the defendant’s attorney might call a witness who saw the car accident and who contradicts the plaintiff’s version of the events. On the issue of injuries, the defendant might present another of the plaintiff's treating doctors who has an opinion different than the doctor who was called as a witness by the plaintiff’s attorney.

Closing Arguments

Following the evidence, the attorney for each side gives a closing argument. While the opening statement at the beginning of the trial addresses what each attorney expects the evidence will show, in a closing argument each attorney talks to the jury about the evidence that was actually presented. The closing argument is each attorney’s opportunity to persuade the jury to draw certain conclusions from the evidence, and then render a verdict in favor of a particular party.

Jury Deliberation

Following the closing arguments, the jury proceeds to a room apart from the courtroom where it then deliberates on the evidence and eventually reaches a verdict. Jury deliberations in all states are confidential, and neither the parties nor the judge observe the deliberations. Most juries reach a verdict in a car accident case within several hours, though there is no set time limit. Sometimes jury deliberations can last for days.

The Jury Reaches a Verdict

Once the jury reaches a verdict, it notifies the judge that the deliberations have concluded. The judge then brings the jury back into the courtroom where the verdict is read to the parties and made a part of the official record of the court.

Jury trials in car accident typically last only a few days from the time jury selection begins until a verdict is reached. However, there is no set rule. The length of a trial largely varies with the complexity of the case and with the local court procedures applicable in your state.

Time Limits for a Personal Injury Lawsuit: What is the Statute of Limitations

If you think you might have a valid personal injury case after any kind of accident, it's crucial to pay attention to the statute of limitations, which is a state law that sets a strict time limit on your right to file a personal injury lawsuit.

How Does the Statute of Limitations Work?

All states have passed statutes of limitations, which set strict deadlines for the filing of different kinds of lawsuits in the state's civil court system. Most states have a statute of limitations that specifically applies to personal injury cases (or to lawsuits alleging negligence). Whatever statute of limitations applies to your potential case, if the deadline has passed and you try to file a lawsuit anyway, your case will almost certainly be dismissed. There are exceptions that could effectively extend the filing deadline, but they're fairly rare.

In a personal injury case, the statute of limitations usually begins running on the day you were injured. For example, in a car accident case, it's the date on which the crash occurred.

The Standard Statute of Limitations in Personal Injury Cases

The statute of limitations in personal injury cases ranges from as short as one year to as long as six years, depending on the state. For details on the law where you live, check the statute of limitations in your state.

The "Discovery Rule" Exception to the Statute of Limitations

Most states have some form of a "discovery rule" exception to the standard statute of limitations deadline in an injury case. In general, the discovery rule extends the filing deadline in situations where the injured person did not know (and had no reasonable basis for knowing) that:

they suffered an injury, and/or
that the potential defendant's actions may have caused the injury
... until after the original statute of limitations deadline passed. This situation is not as uncommon as you might think.

Example Of The Discovery Rule: Let's say your state has a two-year statute of limitations for personal injury cases, but that your state has a discovery rule that says that the statute of limitations does not begin running in a personal injury case until the date the plaintiff: 1) knew or had sufficient notice that he/she was injured; and 2) knew or had sufficient notice of the cause of the harm.

Let's say you were exposed to asbestos in the insulation in the pipes in your basement, and, as a result, 20 years later, you developed mesothelioma, a form of lung cancer that only comes from asbestos exposure. Your doctor asks you if you have any asbestos in the house. Testing reveals that the pipes in your basement have asbestos insulation, and that the insulation has been flaking off the entire time you've been living in the house.

The statute of limitations deadline has probably passed (though your lawyer might argue that ongoing exposure equals an ongoing injury), so

perhaps the only way you can file a personal injury lawsuit over your asbestos exposure would be through reliance on the discovery rule. So your argument would be that the statute of limitations "clock" didn't begin running until the day your doctor told you that your lung cancer was due to asbestos exposure.

Other Ways to Extend the Standard Deadline

In most states, there are several other methods by which the statute of limitations can be extended. For example, if the defendant left the state for any period of time after causing the accident that led to your injury, in most states, the statute of limitations "clock" will pause. So, if the statute of limitations time window for filing a personal injury lawsuit is three years, and the defendant was outside the state for a year after the accident, the statute of limitations in your case would be extended by another year.

Special lawsuit-filing rules also might apply if the plaintiff is a minor (i.e., under age 18), disabled, or mentally ill or insane.